WYOMING LEGISLATIVE SERVICE OFFICE

Memorandum

DATE May 20, 2026

TO Joint Revenue Interim Committee

FROM Matt Sackett, Senior Fiscal Analyst

SUBJECT Property Tax, People's Initiative, and Real Estate Transfer Tax Information

1. **Provide information regarding recent legislation related to property taxes.**

Appendix 1 provides a summary matrix of broad-based property tax legislation from the 2026 Budget Session. The matrix includes Joint Revenue Committee bills as well as several bills from individual legislators. The matrix focuses on broad based legislation, so it does not include more narrowly focused bills such as increased property tax reductions for veterans. Information on the People's Initiative which will be on the November 2026 election ballot is also included within Appendix 1. Each bill along with the fiscal impact, if any, is included as Appendices 2 through 13.

2. **Provide information on historical average residential fair market value, historical average mill levies, as well as historical information on residential assessed values.**

Appendix 14 provides the average residential fair market value, by county, for tax years 2015 through 2025. Data for 2024 and 2025 include the values with and without property tax exemptions. Appendix 15 provides the historical mill levies, by county, for tax years 2015 through 2025. Appendix 16 provides the historical total residential assessed values and percentage change for each tax year from 2019 through 2025.

3. **What is the estimated revenue, by county, of a 2 percent real estate transfer tax if imposed on all residential real estate sales?**

Table 1 provides historical data on the average residential sales price, by county, over the last six tax years and includes the average sales price over that time. Table 2 provides the average number of valid residential sales, by county, over the last six years and includes the average number of sales by county. Table 3 provides an estimate of what a 2 percent residential transfer tax on all residential sales would have generated, by county, over the last six years. In 2025, a 2 percent residential transfer tax would have raised an estimated $92.8 million dollars, or around $46.4 million per one percent residential transfer tax. Note that by county, and statewide, the magnitude of sales year-over-year is volatile.

Appendix 1: Matrix of Recent Property Tax Legislation.

HB/SF Number	Bill Name	General Overview	Property Type	Stipulations	Imp. Date	Effective Date
HB 0045 HEA 23 Appendix 2	Property Tax Long-Term Homeowner Exemption Revision (26LSO-0099) 2026 HEA 23. Mirror Bill: 2026 SF 0039	This legislation removes the repeal (sunset) date of the Long-Term Homeowner (LTHO) Exemption program. Creates a $3 million cap on the fair market value. Specifies if the People's Initiative passes, then LTHO exemption recipients can't receive both exemptions.	Residence and associated land	Subject to being 65, paid residential property tax for 25 years; owner occupied; and resides for not less than 8 months a year. March 1st application deadline.	1-Jul-26	1-Jul-26
HB 0073 Appendix 3	Residential real property-fair market value on transfer (26LSO-0101)	This legislation changes the residential property tax system to a system based on the fair market value upon a transfer and shifts property tax values back to previous calendar years, the earliest of which is 2019. With those values established, the valuation of residential property would then be based on the price paid for the property.	Residence and associated land	Creates an inflationary cap mechanism. Creates exemptions to transfers or acquisitions. Implementation contingent on the adoption of constitutional amendment HJ 0004.	1-Jan-28	Effective Immediate but is dependent on HJ 0004 voter approval
HB 0118 Appendix 4	Residential property tax replacement (26LSO-0282)	This legislation sets the residential property assessment rate to zero eliminating property tax on residential property and implements an additional 2.0% sales and use tax to be used as a replacement; creates a distribution system of the additional 2% sales tax back to local governments.	Residence and associated land	Implementation contingent on the adoption of constitutional amendment SJ 0003.	1-Jan-26	Effective Immediate but is dependent on SJ 0003 voter approval
HB 0124 Appendix 5	Property tax exemption reduction (26LSO - 0418) Representative Locke	This legislation reduces the allowable increase in property tax values, AKA the "Cap" from 4% to a maximum increase of 2%.	Residence and associated land		1-Jul-26	1-Jul-26
HB 0147 Appendix 6	Property tax exemptions-effect of people's initiative (26LSO-0402) Representative Locke	This legislation would repeal the 25% Homeowner's Property Tax Exemption if the People's Initiative on property tax passes the November 2026 General Election.	Residence and associated land	The Secretary of State has to certify the People's Initiative was approved by voters in the November 2026 election.	1-Jan-27	1-Jul-26
HJ 0004 Appendix 7	Residential property tax value-constitutional amendment (26LSO-0102)	This legislation changes the constitution to allow the legislature to determine residential property tax valuation.	Permissive		1-Jan-27	November Election
SF 0077 Appendix 8	Homeowner property tax exemption revisions (26LSO-0098)	This legislation removes the 8 month residency requirement.	Residence and associated land		Effective Immediate	Effective Immediate
SF 0078 Appendix 9	Residential real property-taxable value (26LSO-0103)	This legislation reduces the residential assessment rate from 9.5% to 8.3%.	Residence and associated land		1-Jan-26	Effective Immediate
SF 0086 Appendix 10	Wyoming property tax relief authority (26LSO-0470) Senator Case	This legislation creates the Wyoming Property Tax Relief Authority to help Wyoming homeowners manage increases in property taxes by offering state-facilitated loans.	Primary residence	Creates a five member Board and Authority. Loans funded by bond issuance. Provides loans to cover increases in property taxes.	1-Jul-26	1-Jul-26
SF 0110 Appendix 11	Residential property tax revisions (26LSO-0431) Senator Hicks	This legislation repeals the 25% Homeowner's Property Tax Exemption. For owner-occupied residences, the legislation reduces the assessment rate from 9.5% to 8.3% and reduces the 25 mill school levy to 0 mills.	Residence and associated land	Must reside in the residence for 6 months.	1-Jan-27	1-Jan-27
SJ 0003 Appendix 12	Residential property tax-constitutional amendment (26LSO-0100)	This legislation functionally eliminates residential property tax in Wyoming by setting the constitutional assessment rate at zero percent.	Residence, land, out buildings, and vacant land		1-Jan-27	November Election
People's Initiative Appendix 13	People's Initiative (Constitutional Amendment)	The initiative exempts 50% of the assessed value of a qualifying primary residence from property taxation.	Owner occupied primary residence only	Is subject to being owner occupied (6 months) with a 1 year residency requirement.	1-Jan-27	November Election

Source: LSO summary of 2026 legislation broadly focused on property tax as well as information on the People's Initiative.

APPENDIX 13

People's Initiative to Limit Property Tax in Wyoming through a Homeowner's Property Exemption

A BILL

for

AN ACT relating to taxation; establishing a homeowner's exemption for primary residences; providing a penalty for false claims; and specifying applicability.

Be It Enacted by the People of the State of Wyoming:

Section 1. W.S. 39-11-105(a) by creating a new paragraph (xliii) is amended to read:

39-11-105. Exemptions.

(a) The following property is exempt from property taxation:

(xliii) A portion of property used as a primary residence as a homeowner's exemption. The following shall apply to the homeowner's exemption:

(A) For property used as a primary residence, fifty percent (50%) of the assessed value of the primary property is exempt from property taxation as a homeowner's exemption. Not more than one (1) homeowner's exemption shall apply to the same property in any year and no owner shall claim more than one (1) homeowner's exemption in any year including property that is improved by a residence that houses more than one (1) family. To claim a homeowner's exemption the person shall have been a resident of this state for not less than one (1) year prior to claiming an exemption under this paragraph and shall have resided in the applicable primary residence for at least six (6) months of the immediately preceding tax year. To claim a homeowner's exemption, the owner of the property shall submit a sworn claim to the county assessor not later than the fourth Monday in May on forms provided by the department of revenue demonstrating that the person is the owner of the property, and that the property is the person's primary residence. False claims are punishable as provided by W.S. 6-5-303.

(B) After filing a sworn claim pursuant to subparagraph (A) of this paragraph, in subsequent years the claimant shall remain qualified for the homeowner's exemption

provided by this paragraph providing that the claimant in subsequent years contacts the assessor's office by telephone, mail or other communication method on or before the fourth Monday in May and confirms that the claimant continues to meet the requirements set forth in this paragraph;

(C) As used in this paragraph:

(I) "Primary residence" means a house, trailer house, mobile home, transportable home or other dwelling place;

(II) "Homeowner" means any of the following provided that no other person who may qualify as an owner or joint owner shall apply for a homeowner's exemption for the same property in the same year:

(1) A person who occupies and owns a primary residence either solely or jointly with other owners;

(2) A person who occupies a primary residence as a vendee in possession under a contract of sale;

(3) A person who occupies a primary residence owned by a business entity primarily formed for the purpose of farming or ranching if the person is a shareholder or partner of the business entity or is related to a shareholder or partner of the business entity.

(D) This act is applicable to tax year 2025 and thereafter.

Wyoming Citizen's Initiative on Residential Owner Occupied Property - 50% Reduction (Dwelling Only)

Jurisdiction	Estimated Total Assessed Value (AV) Dwelling Only CY 2027 (FY28)	Estimated Owner Occupied and Residency Requirement AV Reduction	Citizen's Initiative 50 Percent Additional AV Reduction	Estimated Taxes Before	Estimated Taxes After (50% Reduction)	Estimated Tax Difference	Estimated SFP 12 Mills	Estimated School 31 Mills (25 Mandatory + 6 County)	Estimated County 12 Mills	Estimated All Other Mills
Albany	$ 276,335,769	$ 93,405,396	$ 46,702,698	$ 6,626,552	$ 3,313,276	$ (3,313,276)	$ (560,432)	$ (1,447,784)	$ (560,432)	$ (744,628)
Big Horn	$ 59,924,286	$ 40,757,788	$ 20,378,894	$ 2,983,918	$ 1,491,959	$ (1,491,959)	$ (244,547)	$ (631,746)	$ (244,547)	$ (371,120)
Campbell	$ 265,347,432	$ 178,926,360	$ 89,463,180	$ 11,584,050	$ 5,792,025	$ (5,792,025)	$ (1,073,558)	$ (2,773,359)	$ (1,073,558)	$ (871,550)
Carbon	$ 90,128,074	$ 59,364,270	$ 29,682,135	$ 4,113,528	$ 2,056,764	$ (2,056,764)	$ (356,186)	$ (920,146)	$ (356,186)	$ (424,247)
Converse	$ 90,766,063	$ 60,728,752	$ 30,364,376	$ 3,954,596	$ 1,977,298	$ (1,977,298)	$ (364,373)	$ (941,296)	$ (364,373)	$ (307,257)
Crook	$ 61,585,504	$ 42,351,332	$ 21,175,666	$ 2,759,909	$ 1,379,955	$ (1,379,955)	$ (254,108)	$ (656,446)	$ (254,108)	$ (215,293)
Fremont	$ 242,456,778	$ 148,817,108	$ 74,408,554	$ 11,312,184	$ 5,656,092	$ (5,656,092)	$ (892,903)	$ (2,306,665)	$ (892,903)	$ (1,563,621)
Goshen	$ 75,224,323	$ 46,184,143	$ 23,092,072	$ 3,359,157	$ 1,679,579	$ (1,679,579)	$ (277,105)	$ (715,854)	$ (277,105)	$ (409,515)
Hot Springs	$ 31,926,272	$ 20,024,256	$ 10,012,128	$ 1,470,421	$ 735,211	$ (735,211)	$ (120,146)	$ (310,376)	$ (120,146)	$ (184,544)
Johnson	$ 82,818,979	$ 55,477,659	$ 27,738,830	$ 4,003,934	$ 2,001,967	$ (2,001,967)	$ (332,866)	$ (859,904)	$ (332,866)	$ (476,331)
Laramie	$ 859,036,885	$ 513,110,625	$ 256,555,313	$ 36,512,439	$ 18,256,219	$ (18,256,219)	$ (3,078,664)	$ (7,953,215)	$ (3,078,664)	$ (4,145,677)
Lincoln	$ 311,353,091	$ 223,172,767	$ 111,586,383	$ 14,119,471	$ 7,059,736	$ (7,059,736)	$ (1,339,037)	$ (3,459,178)	$ (1,339,037)	$ (922,485)
Natrona	$ 517,986,508	$ 329,905,184	$ 164,952,592	$ 23,212,789	$ 11,606,394	$ (11,606,394)	$ (1,979,431)	$ (5,113,530)	$ (1,979,431)	$ (2,534,002)
Niobrara	$ 9,127,577	$ 5,274,998	$ 2,637,499	$ 377,162	$ 188,581	$ (188,581)	$ (31,650)	$ (81,762)	$ (31,650)	$ (43,519)
Park	$ 369,412,185	$ 234,052,317	$ 117,026,158	$ 16,108,417	$ 8,054,208	$ (8,054,208)	$ (1,404,314)	$ (3,627,811)	$ (1,404,314)	$ (1,617,770)
Platte	$ 72,667,498	$ 46,559,763	$ 23,279,882	$ 3,244,238	$ 1,622,119	$ (1,622,119)	$ (279,359)	$ (721,676)	$ (279,359)	$ (341,725)
Sheridan	$ 347,794,045	$ 206,462,969	$ 103,231,485	$ 13,928,611	$ 6,964,306	$ (6,964,306)	$ (1,238,778)	$ (3,200,176)	$ (1,238,778)	$ (1,286,574)
Sublette	$ 110,476,178	$ 71,913,650	$ 35,956,825	$ 4,743,496	$ 2,371,748	$ (2,371,748)	$ (431,482)	$ (1,114,662)	$ (431,482)	$ (394,123)
Sweetwater	$ 228,814,718	$ 139,708,874	$ 69,854,437	$ 10,123,026	$ 5,061,513	$ (5,061,513)	$ (838,253)	$ (2,165,488)	$ (838,253)	$ (1,219,519)
Teton	$ 2,170,764,293	$ 1,123,433,727	$ 561,716,864	$ 65,073,775	$ 32,536,888	$ (32,536,888)	$ (6,740,602)	$ (17,413,223)	$ (6,740,602)	$ (1,642,460)
Uinta	$ 123,792,146	$ 78,441,456	$ 39,220,728	$ 5,194,864	$ 2,597,432	$ (2,597,432)	$ (470,649)	$ (1,215,843)	$ (470,649)	$ (440,292)
Washakie	$ 51,708,363	$ 33,956,426	$ 16,978,213	$ 2,374,267	$ 1,187,134	$ (1,187,134)	$ (203,739)	$ (526,325)	$ (203,739)	$ (253,332)
Weston	$ 40,807,499	$ 31,867,787	$ 15,933,894	$ 2,349,580	$ 1,174,790	$ (1,174,790)	$ (191,207)	$ (493,951)	$ (191,207)	$ (298,426)
Total	**$ 6,490,254,465**	**$ 3,783,897,606**	**$ 1,891,948,803**	**$ 249,530,385**	**$ 124,765,193**	**$ (124,765,193)**	**$ (22,703,386)**	**$ (58,650,413)**	**$ (22,703,386)**	**$ (20,708,009)**

Fund	Estimated Property Tax Reduction
SFP 12 Mills	$ (22,703,386)
School 31 Mills	$ (58,650,413)
County 12 Mill	$ (22,703,386)
All Other Mills	$ (20,708,009)
Total	**$ (124,765,193)**

2025 CAMA Data was used for the above estimates.
The estimates are calculated as the total revenue reductions if the Citizen's Initiative is adopted by the voters in the November 2026 election for Tax Year 2027 (FY 2028).
The average mill levy for each county was used for the estimates.
The owner-occupancy and the residency requirements are from the 2024 EAD County Profiles Report.
The starting value is based on current law. That includes the 4% capped value from the previous year, the 25% tax exemption, and CREG's 2% growth assumption per year.
Estimated tax revenue reductions would be in addition to those exemptions.
The proposed initiative is an exemption of 50% applied to the owner occupied dwelling only.
Information and analysis provided by:
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